

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABEBAYEHU GETACHEW FEKE,	)	Case Number: FDI-25-801531
Petitioner	)	Hearing Date: August 4, 2026
VS.	)	Hearing Time: 9:00 AM
MEKDELAWIT NESSIBU MEKURIA,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR
PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Abebayehu Feke (Father) and Respondent Mekdelawit Mekuria (Mother) married on 2/12/2009. The parties agree they separated on 8/1/2024, for a marriage of 15 years and 6 months. The parties have one minor child, Blen (DOB: 9/6/2010, age 15). Both parties are self-represented.
- 2) On for hearing is Mother’s Request for Order filed 4/20/2026 seeking custody and visitation orders as well as guideline child support and temporary guideline spousal support retroactive to the parties’ date of separation. Mother states, “Our child has ongoing monthly needs, including approximately \$500 for food, \$400 for school and activities, and \$300 for other necessities. My monthly rent is \$2,338. I earn approximately \$5,000 per month and have been covering the majority of these expenses alone, which has caused financial hardship and increased debt.”
- 3) On 7/2/2026, a Child Custody and Visitation Stipulation and Order was entered which awards Mother sole legal and sole physical custody of Blen. The stipulation provides that Father will pick

up Blen every morning at 7:45 AM from Mother's residence and drop her off at school and that Father will pick up Blen from school every Monday and drop her off at her mother's residence by 6 PM. The parties are to coordinate dates and times for Father's visitation during weekends, vacations, and holidays.

- 4) On 7/8/2026, Father filed an Income and Expense Declaration. He states that he is 52 years old and works 40 hours per week, earning \$30.62 per hour as a valet attendant. Father states he earns on average \$200 per month for overtime. Father also states that he earns \$1,200 per month in net self-employment income as a driver for Uber. Father reports that he has \$11,003 in accumulated vacation and sick hours through his employer. Father did not attach paystubs or a Schedule C or Profit and Loss Statement for his Uber driving.
- 5) Attached to Father's 7/8/2026 Income and Expense Declaration is a declaration wherein Father asks the Court to deny Mother's request for support retroactive to August 2024. Father states that in August 2024 (parties' date of separation), Mother stopped contributing to household and shared family expenses. Father states that from June 2024 through July 2025, he was responsible for all household and community expenses including rent of \$2,100 per month, \$274 per month for Mother's life insurance premiums, credit card debt incurred as a result of Mother's three-month "vacation" which Mother took before the parties' separation, \$961 per month for car payments, \$150 per month for vehicle insurance, \$900 for vehicle registration, and tuition expenses of \$212 per month. Father states he moved out of the marital residence in June 2025. Father requests reimbursement for Mother's share of household and community expenses that he paid between August 2024 through June 2025.
- 6) On 7/17/2026, Mother filed an Income and Expense Declaration. Mother states that she is 45 years old and is a lead host for a restaurant. Mother states that she works 32 hours per week and is paid \$5,792 in gross per month. Mother states that her work hours were reduced and her income fluctuates due to reduced hours and variable tips.

B. Findings and Order

1) Guideline Child and Temporary Spousal Support

- a. Mother's request for child support and temporary spousal support retroactive to the parties' date of separation is denied.

- 1 b. Effective 4/20/2026 (the date Mother filed her Request for Order), in accordance with the
2 XSpouse calculation attached hereto and incorporated herein, Father shall pay temporary
3 guideline spousal support of \$0 and Father shall pay Mother guideline child support of
4 \$1,086 per month. One-half shall be due and payable by the 1st of the month and one-half
5 shall be due and payable by the 15th of each month.
- 6 c. Child support for August 2026 shall be due and payable in full no later than 8/15/2026.
- 7 d. Based on the foregoing, Father owes Mother child support arrears in the amount of \$362
8 for the period 4/20/2026 – 4/30/2026 and \$3,258 for the period 5/1/2026 – 7/31/2026, for
9 total child support arrears due and owing of \$3,620 for the period 4/20/2026 – 7/31/2026.
10 Effective 9/15/2026, Father shall pay Mother an additional \$301.67 by the 15th of each
11 month for 12 months to satisfy these arrearages.
- 12 e. The XSpouse inputs are based on the following findings:
- 13 i. The Court finds that Father regularly has the child in his care 4% of the time. It is
14 unknown exactly how much additional time Father will have on weekends,
15 vacations, and holidays. The Court estimates that if Father has the child in his
16 care an additional 48 hours per month, that would amount to an additional 7% of
17 time, bringing his total timeshare to 11%.
- 18 ii. Father reports working 40 hours per week and earning \$30.62 per hour, which
19 averages out to \$5,307 per month.
- 20 iii. Father reports earning \$1,200 per month in net self-employment income driving
21 for Uber.
- 22 iv. Mother reports working 32 hours per week and earning \$36 per hour, which
23 averages out to \$4,992 per month.
- 24 v. Mother's paystubs show that she contributes on average \$566 per month to her
25 401(k).

26 2) Child Support Add-Ons

- 27 a. Effective 8/1/2026, the parties shall share all reasonable uninsured healthcare costs for
28 Blen and all educational expenses for Blen 40% (Father) and 60% (Mother).
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- 1 b. The procedure for requesting and paying reimbursements for uninsured healthcare costs
2 for Blen shall be as set forth in Judicial Council Form FL-192.
- 3 c. The procedure for requesting and paying reimbursements for educational costs for Blen
4 shall be as follows. When a party (e.g. Party A) pays for an educational expense for Blen,
5 within 30 days of paying the expense, Party A shall present to Party B: (a) an itemized
6 statement of charges, (b) proof of payment, and (c) the amount due and owing from Party
7 B. Within 10 days of receiving this information, Party B shall submit a payment to Party
8 A for Party B's share of the expense.

9 3) No Smith / Ostler Order

- 10 a. Father reports earning overtime pay each month. Mother's pay stubs likewise reflect that
11 she occasionally earns overtime pay. Mother contends Father receives cash tips that he
12 did not report in his Income and Expense Declaration. However, Mother's pay stubs
13 similarly show that she regularly receives tips. The Court further notes that, after paying
14 child support, Father will have \$3,847 in monthly net disposable income, representing
15 approximately 41% of the parties' combined net disposable income. The Court finds that
16 this amount is insufficient to cover Father's reported monthly expenses, even before
17 considering any additional income from overtime or tips. Under these circumstances, the
18 Court finds that Father should retain any additional income from overtime or tips to meet
19 his monthly living expenses. In addition, because both parties receive overtime pay and
20 tips, the Court declines to issue a Smith/Ostler order at this time.

21 4) Review Hearing and Reservation of Jurisdiction

- 22 a. Because Father failed to attach paystubs, a Schedule C, or a Profit and Loss Statement to
23 his Income and Expense Declaration, the Court's jurisdiction to recalculate child and
24 temporary spousal support retroactive to 4/20/2026 and modify the orders set forth above
25 is reserved for the next hearing date of **Tuesday, 10/20/2026 at 9:00 AM in Dept. 404.**
- 26 b. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
27 updated Income and Expense Declarations. Father shall attach to his Income and Expense
28 Declaration:
29 i. Paystubs for the immediately preceding 2 months

1 ii. Schedule C for 2025 for his Uber driving

2 iii. Profit and Loss Statement for 2026 year-to-date for his Uber driving

3 5) Other Orders

4 a. All requests for property division orders set forth in Mother's declaration filed 5/28/2026
5 are denied without prejudice and are reserved for trial.

6 b. Father requests set forth in the declaration attached to Father's 7/8/2026 Income and
7 Expense Declaration for reimbursement for Mother's share of community expenses that
8 he paid between August 2024 through June 2025 and his requests related to property
9 division are denied without prejudice and are reserved for trial.

10 c. If the parties are unable to reach agreements regarding how to divide their property
11 following the exchange of their Preliminary Declarations of Disclosure, the parties may
12 file an At Issue Memorandum to request a Status Conference, which is the first step
13 towards obtaining a Mandatory Settlement Conference and eventual trial date.

14 d. The parties are encouraged to seek assistance from the ACCESS Center for information
15 regarding how to proceed with their case. Information for contacting the ACCESS Center
16 can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.

17 6) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	1	2026				
% time with NCP	11.00 %	0.00 %	GUIDELINE		Comb. net spendable	9417	9432
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	2 *			Father		
Wages+salary	5307	4992	Father	4949	Payment cost/benefit	-1086	-923
Self-employed income	1200	0	Mother	4468	Net spendable income	3863	4026
Other taxable income	0	0	Total	9417	Change from guideline	0	162
TANF+CS received	0	0	Support		% of combined spendable	41%	43%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	1145%
New spouse income	0	0	Guideln CS	1086	Total taxes	1558	1334
401(k) employee contrib	0	566	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	1086	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	4057	4057
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	1086	938
Other medical expense	0	0			Net spendable income	5554	5406
Property tax expense	0	0			Change from guideline	0	-148
Ded interest expense	0	0	Proposed		% of combined spendable	59%	57%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-1045%
Misc tax deductions	0	0	CS	1148	Total taxes	524	734
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	1148	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	14	Net wage paycheck	3497	3497
Hardship deduction	0 *	0 *	Releases	1			
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information								
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS Payor
All children	11 - 89	0	0	0	Father	1086	Father	1086 Father
	11 - 89	0	0	0	Father	1086	Father	1086 Father